2. The Executive Order of May 4, 1907, reserving certain public lands in the District of Alaska pending survey and segregation for educational purposes, is hereby revoked so far as it affects the lands in the following-described areas:

*Point Hope.* Thirty miles south of Cape Lisburne, near latitude 68°, longitude 167°, on the shores of the Arctic Ocean.

*Nome.* On the southern shore of the Seward Peninsula, latitude 64°21', longitude 165°.

The order reserved not in excess of 40 acres at each place.

The lands at Point Hope hereinabove described are included in the withdrawal made by Executive Order No. 5391 of July 8, 1930, for use of the office of Education.

3. The Executive Order of August 21, 1897, reserving certain lands in Alaska for school purposes is hereby revoked so far as it affects the following-described lands:

*Unalaska.* Beginning at a point on high water line of townsite of Unalaska, as surveyed in 1892, by Francis Tagliabue, U. S. D. S. where the northerly line of the first street (not named in plat) southeast and parallel with South Street, if extended, will intersect said high water line; thence southwesterly along the northerly line of said street to the southeasterly line of the first street (not named on plat) southwest and parallel with Iliuliuk street, being 693 feet more or less; thence northwesterly along the easterly line of said street, 200 yards; thence northeasterly at right angles with last course and parallel with South Street to the high water line, being 561 feet more or less; thence southeasterly along said line to place of beginning, containing 8.5 acres.

The lands are within the boundaries of the townsite of Unalaska and are subject to disposal only under applicable townsite laws.

4. Executive Order No. 1194 of April 26, 1910, reserving certain public lands for the Bureau of Education, Department of the Interior for educational purposes is hereby revoked so far as it affects the following-described lands:

*Kanakanak.* Beginning at Corner No. 1, a stake set in the ground; thence in a northerly direction 1,100 feet to Corner No. 2; thence in a westerly direction 600 feet to Corner No. 3; thence in a southerly direction 1,100 feet, to Corner No. 4; thence 600 feet in an easterly direction to Corner No. 1, the place of beginning, containing 15.36 acres.

The lands are included in the withdrawal made by Executive Order No. 5391 of July 8, 1930, for use of the Office of Education.

5. Executive Order No. 5289 of March 4, 1930, reserving certain tracts of land in Alaska, pending survey and segregation, for use of the Office of Education, is hereby revoked so far as it affects the lands reserved in the following-described area:

*Kotlik.* Near latitude 63°0' N., longitude 163°20' W.

The order reserved not in excess of 40 acres.

This order shall not otherwise be effective to change the status of the lands at Kotlik, described in paragraph 5 of this order and at Nome, described in paragraph 2 (b), until 10:00 a. m. on the 35th day after the signing of the order, at which time the lands shall, subject to valid existing rights and to the provisions of existing withdrawals, be opened to settlement under the homestead laws and the homesite act of May 26, 1934 (48 Stat. 809; 48 U. S. C. 461), and to those forms of appropriation only by qualified veterans of World War II for whose services recognition is granted by the act of September 27, 1944 (58 Stat. 747; 43 U. S. C. 279–284), as amended, and by other qualified persons entitled to credit for service under the said act, Commencing at 10:00 a. m. on the 126th day after the date of this order, any of such lands not settled upon by veterans or other persons entitled to credit for service shall become subject to settlement and other forms of appropriation by the public generally in accordance with appropriate laws and regulations.

Applications for this land, which shall be filed in the Land Office, Bureau of Land Management, Fairbanks, Alaska, shall be acted upon in accordance with the regulations contained in § 295.8 of Title 43 of the Code of Federal Regulations, to the extent that such regulations are applicable. Applications under the homesite or homestead laws shall be governed by the regulations contained in Parts 64 and 66, inclusive, of Title 43 of the Code of Federal Regulations. Inquiries concerning this land shall be addressed to the Manager, Land Office, Bureau of Land Management, Fairbanks, Alaska.

ORME LEWIS,
*Assistant Secretary of the Interior.*

JULY 22, 1954.

[F. R. Doc. 54-5742; Filed, July 27, 1954; 8:45 a. m.]

# PROPOSED RULE MAKING

## TREASURY DEPARTMENT

### Internal Revenue Service

### [ 26 CFR Part 182 ]

INDUSTRIAL ALCOHOL

NOTICE OF PROPOSED RULE MAKING

Notice is hereby given, pursuant to the Administrative Procedure Act, approved June 11, 1946, that the regulations set forth in tentative form below are proposed to be prescribed by the Commissioner of Internal Revenue, with the approval of the Secretary of the Treasury. Prior to the final adoption of such regulations, consideration will be given to any data, views, or arguments pertaining thereto which are submitted in writing, in duplicate, to the Commissioner of Internal Revenue, Washington 25, D. C., within the period of 15 days from the date of publication of this notice in the FEDERAL REGISTER. The proposed regulations are to be issued under the authority contained in sections 3105, 3124 and 3176 of the Internal Revenue Code (53 Stat. 358, 364, 375; 26 U. S. C. 3105, 3124, 3176).

[SEAL] T. COLEMAN ANDREWS,
*Commissioner of Internal Revenue.*

In order (1) to provide for the receipt and use of materials and the distillation of alcohol without supervision by a storekeeper-gauger under certain conditions, (2) to permit the proprietor of a denaturing plant to receive, package and remove denatured alcohol during regular business hours, and at other hours on appropriate notice, without supervision of a storekeeper-gauger, (3) to provide for checking of the carrier's permit, examining of conveyances, sealing of openings, and distributing of forms by the proprietor on removal of denatured alcohol, (4) to conform with the provisions of Treasury Decisions 5065 and 5075 relative to the reuse, marking and numbering of steel drums, (5) to provide that copies of Forms 1440 and 92 be forwarded to the storekeeper-gauger at a rectifying plant or taxpaid bottling house, (6) to discontinue the use of Form 1473 covering shipments of completely denatured alcohol, (7) to delete administrative instructions which are to be incorporated in internal management documents and (8) to require a closed distilling system to commence at the point where access to the contents of any vessel, pipe, or other container in the system would constitute a jeopardy to the revenue, Regulations 3 (26 CFR Part 182) are hereby amended as follows:

PARAGRAPH 1. Whenever the term "supervisor" or "district supervisor" appears in the sections of the regulations revised by this Treasury decision, such term is hereby amended to read "Assistant Regional Commissioner," and wherever the term "district" or "supervisory district" is used, such term is hereby amended to read "region". "Assistant Regional Commissioner" shall mean the Assistant Regional Commissioner, Alcohol and Tobacco Tax, who is responsible to, and functions under the direction and supervision of, the Regional Commissioner.

PAR. 2. Sections 182.338, 182.339, 182.342, 182.344, 182.349, 182.351, 182.361, 182.396, 182.414, 182.454, 182.741, 182.761, 182.804, 182.933 and 182.934 are revoked.

PAR. 3. Section 182.15a, as amended by Treasury Decision 5801, approved August 11, 1950, is further amended by striking from the second sentence the following: "High wine tanks, receiving tanks," and substituting in lieu thereof the following: "Receiving tanks".

PAR. 4. Section 182.26 is amended as follows:

(A) By striking the word "must" between the words "proprietor" and "pro-